

Motion for Judgment on the Pleadings

The court denies the motion for judgment on the pleadings as to the implied warranty of merchantability claims, as the alleged time bar does not appear on the face of the complaint. As to the remainder of the motion as to fraudulent concealment/inducement the court grants the motion with leave to amend. The Plaintiff must file their first amended complaint within thirty days of the date of this order.

Motion to Compel Initial Disclosures and Request for Monetary Sanctions

The motion is denied in part and granted in part. There is no statutory requirement for verification of the production for the reasons stated herein. That stated, it appears that the production of the relevant document was substantially delayed without cause and in violation of the statute. To the extent that the records for the specified items LOP-85-41-x-xx and LOP08-19-xx-40 relate to specific warranty claims for the Subject Vehicle's VIN number, it appears that these items are within the ambit of the documents to be produced. The Auto Pay and TNF visits are pursuant to Robertson v. Fleetwood Travel Trailers of CA (2006) 144 Cal. App. 4th 785, actions which constitute repair attempts under the Song Beverly Act. These too should be produced as reflecting the number of repair attempts. IT also appears that the request for specific DealerConnect information addresses specific subsections of CCP§871.26 (h) 's disclosure requirements.

The Defendant will be given thirty days to comply in full with the disclosure requirements as stated. The court imposes \$2500.00 as sanction on the Defendant.

END OF TENTATIVE DECISIONS